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Business partners' terms and conditions

Affiliates and introducing brokers

Version R26|01
Last updated 04/12/2025

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Affiliates and introducing brokers

Here, you will find the terms and conditions that relate specifically to our Affiliates and Introducing Brokers (the "**Terms**"). These Terms should be read in conjunction with the General Terms for Business Partners (the "**General Terms**"). Any defined terms used in these Terms shall have the meaning given to them in the General Terms. Unless otherwise specified, the clauses in these Terms apply to both Affiliates and Introducing Brokers.

1. Your obligations

1.1. You must make sure that any historical trading records, performance figures, and any other representations you make to your referrals in relation to our products and services are accurate and not misleading.

1.2. You will not hold or pool your referrals' funds or third-party funds into your own account held with us.

1.3. You will not place trades on behalf of your referrals and shall not coerce them to trade according to your instructions.

1.4. You will not encourage your referrals to make deposits or place trades with the purpose, whether in whole or in part, express or implied, of increasing your commissions.

1.5. While we encourage you to be your referrals' point of contact, you should never try to control your clients.

1.6. We shall not accept a referral application from an existing Deriv client who has traded on any of our platforms within one hundred and twenty (120) days of the date of the application.

1.7. You are not permitted to become our client by using your affiliate link.

1.8. You will never indicate that we, you, or any of your associates will guarantee any client's profit or limit any client's losses.

1.9. You agree to:

1.9.1. Use your best endeavours to attract potential clients for us;

1.9.2. Only use marketing materials provided by us for the sole purpose of marketing Deriv;

1.9.3. Provide us with any information that you have become aware of which may result in any adverse or harmful consequences for us or the Deriv brand; and

1.9.4. Inform any clients introduced to Deriv that the trading services and financial products are offered by or through us and not you.

1.10. You are required to display a prominent risk warning on your website and associated materials with the following wording: *The products offered on the Deriv.com website include Options, Contracts for Difference ("**CFDs**"), and other complex derivatives. Trading Options may not be suitable for everyone. Trading CFDs carries a high level of risk since leverage can work both to your advantage and disadvantage. As a result, the products offered on the website may not be suitable for all investors because of the risk of losing all of your invested*

capital. You should never invest money that you cannot afford to lose and never trade with borrowed money. Before trading in the complex products offered, please be sure to understand the risks involved.

1.11. We reserve the right to refuse your referrals' applications to open an account (or to close their accounts) if judged necessary, to comply with any requirements we may periodically establish or that may be required under applicable laws, rules, and regulations.

1.12. When your referrals open an account with us, we assume ownership of the database of names, contact information, and any other data of your referrals.

2. Payments

2.1. General

2.1.1. Neither your direct relatives nor any clients controlled by you are eligible to become our clients, and you will not be entitled to any commission or any other remuneration from us in relation to such relatives or controlled clients.

2.1.2. We will not pay you commissions for any accounts that an associate of yours has opened. By associate, we mean any physical person or any type of legal person or entity or body of persons that has business, commercial, financial, entrepreneurial, employment, agency, family, personal, or other links or bonds with you. This includes any person who has the same personal information, IP address, physical or mailing address, telephone number, email address, or passport details as you.

2.1.3. You acknowledge that the commission payable to you in accordance with our policies fully compensates you for your activities and obligations under the Business Terms.

2.1.4. You are responsible for the payment of your own taxes, duties, fees, or other governmental levies or charges. Any fees that we pay you in connection with any of these Terms are exclusive of any such taxes, duties, fees, or levies.

2.1.5. You are not allowed to rebate any part of your commission to your referred clients, and if it comes to our attention that you are engaged in any such action, your account shall be revoked immediately.

2.1.6. Commissions may be paid only on closed/completed trades made by clients you introduced and we approved, executed on Deriv Trader, Deriv Bot, Deriv GO, SmartTrader, and/or third-party apps using Deriv API.

2.1.7. We reserve the right to cancel, delay, or withhold payment of any commissions to you in certain situations, including a suspected breach of law or a breach of any of the Business Terms.

2.1.8. Commissions will be earned on transactions that the client makes with us under your affiliate ID for as long as you remain a member of this programme. We reserve the right to cancel any commissions that you do not claim within two (2) years.

2.1.9. Commissions shall only be payable for bona fide client referrals. We reserve the right, at our sole discretion, to disregard duplicate accounts or nominee accounts that we see as non-bona fide clients.

2.1.10. Whilst we will endeavour to notify you of any changes in advance, we reserve the right to change our commission rates from time to time without prior notice.

2.1.11. We reserve the right, at our sole discretion, to modify, reassign, or transition you to a different Affiliate or Introducing Broker programme, commission structure, or partner rewards programme, including changes to any associated terms, commission rates, tiering, and performance bonus. Any such change may be applied retrospectively to prior periods and shall take effect from the date specified in the written notice to you. Your continued participation in the programme following such notification shall constitute your acceptance of the revised plan and terms.

2.1.12. If we identify that you have abused the business relationship with us in any way, we reserve the right to take one or more of the following actions:

2.1.12.1. Terminate the business relationship with you and close your account;

2.1.12.2. Withhold the payment of any commissions that may be payable to you;

2.1.12.3. Claim back any commissions paid to you, where such commissions were generated through abusive conduct and offset our claim against any funds that you hold with us; or

2.1.12.4. Untag any client from your account where we identify irregular client–partner associations or trading patterns that affect the fairness or integrity of Deriv's partnership programme.

2.1.13. We reserve the right to refuse to pay you any commissions earned from any of your referred clients where we have identified abusive trading patterns or behaviour on their part.

2.1.14. Any commission already paid to you that was earned from a client who exhibits abusive trading patterns or behaviour shall be repayable to us, and it may be recouped from any funds held with us or from any commission payable to you.

2.1.15. If you engage in any manipulations of our systems and business in ways which result in any adverse, special, incidental, punitive, or consequential loss or damages to us, we may do the following in our absolute discretion:

2.1.15.1. Refuse to pay you any commission;

2.1.15.2. Rescind any commission paid or payable by us to you against any amounts held by you in any of your accounts and/or the accounts of any individuals we determine are your associates; or

2.1.15.3. Terminate your accounts and/or the accounts of any individuals we determine are your associates in the above-mentioned manipulation.

2.1.16. You are expressly prohibited from engaging in or facilitating any activity intended to manipulate or optimise commission payments, revenue shares, or any financial benefit outside the intended structure of our programmes. This includes, but is not limited to, repeated or coordinated creation, use, or rotation of partner accounts. If we determine, in our sole discretion, that you have engaged in such conduct, we may, without limitation:

2.1.16.1. Withhold or reclaim any payments or benefits (including commissions) arising from such activity;

2.1.16.2. Immediately terminate your account and/or business relationship; and/or

2.1.16.3. Pursue any other remedies available under these Terms or at law.

2.1.17. In the event of termination of the Business Terms, we may pay commissions for any trades placed by clients prior to the date of termination, but shall not be liable to pay commissions for any trades placed by clients on or after the date of termination.

2.1.18. In the event of any errors, including errors in payments made to you, we reserve the right to take any action necessary to rectify the error, including correcting any inaccuracies, temporary or permanent suspension of access to the relevant products, modification, replacement or refund of funds, or refusing or reversing trades. You agree to promptly notify us of any errors that you become aware of and to repay any amounts paid to you in error.

2.2. Affiliates' payments

2.2.1. Payment of commissions earned for the previous calendar month may be made monthly, on or around the fifteenth (15th) day of each month, and may be credited to any payment method as agreed between you and us.

2.2.2. We may pay you the currently published percentage of net revenues (as detailed on the "Commission" page of your account) that you generate in accordance with the Business Terms.

2.2.3. We may provide you with statements detailing the revenues that are generated by any clients you have referred and have accrued to you over the course of a calendar month. Such statements may be accessed through an electronic system and may be updated daily. At the end of a calendar month, we may record your total share of net revenues during the previous calendar month. If a revenue share in any calendar month is a negative amount, we shall be entitled, but not obliged, to carry forward and set off any such negative amount against future revenue shares which would otherwise be payable to you. However, we shall also be entitled, but not obliged, to reset the negative balance that would otherwise be carried forward to zero.

2.2.4. If a client for whom you earn commissions initiates a chargeback, we reserve the right to deduct the commission portion of that chargeback from the total balance due to you for the current period. If this deduction exceeds the current amount due to you, your account may reflect a negative balance, requiring you to earn additional commissions to offset the chargeback before your balance returns to positive.

2.2.5. If an error is made in the calculation of your share of the revenue, we reserve the right to correct such a calculation at any time and to reclaim any overpayment that we have made to you before you can start earning revenue again.

2.2.6. If you refer other Affiliates to us and become a "master affiliate" with an account to which each referred Affiliate's account (sub-affiliate account) is tied, you acknowledge that you are not allowed to own or control any sub-affiliate accounts linked with your master affiliate account. If we have reason to believe that you have breached this term, we reserve the right to reverse or cancel any commissions to you and/or terminate our business relationship with you.

2.2.7. We reserve the right to exclude revenue sharing on promotional funds that we have deposited into the client's account.

2.2.8. We shall provide advertising collaterals and/or other marketing materials with links containing affiliate IDs, which we may modify from time to time.

2.2.9. In the event that a client accesses our website(s) through the links provided on your website or by using your affiliate IDs during the sign-up process and subsequently places a trade or conducts a transaction with us, we will exert reasonable efforts to ensure that this client is recognised as a referral from you. However, only correctly tagged customers will be attributed to you. We will not be held accountable if we are unable to identify a customer as a referral from you. It is your responsibility to ensure that all links are correctly tagged.

2.3. Introducing Brokers' payments

2.3.1. Your accrued daily commission may be credited to your account every night at 23:59 UTC, after which you can withdraw it at any time you wish.

3. Tiering Programme and Quarterly Performance Bonus

3.1. "Tiering Programme" is the performance-based partner incentive framework offered by Deriv to Affiliates and Introducing Brokers. The Tiering Programme includes tier classification based on defined eligibility criteria, and may entitle qualifying partners to enhanced commissions, benefits, or bonuses.

3.2. Tier levels are assigned based on a rolling 3-month average of the net commissions earned from Deriv platforms, evaluated monthly. Net commissions will account for any adjustments, including rescinded or reversed commissions, so that only the actual commissions retained during the period will be considered for tier level assignment.

3.3. Eligibility for the Tiering Programme, tier assignment, bonus qualification, and associated benefits shall be determined at our sole discretion, based on criteria set out in the programme description provided on the Partner Hub or in other communications from us.

3.4. We reserve the right to disqualify or withhold any bonus or tier-based payment if:

3.4.1. You fail to meet the stated eligibility requirements;

3.4.2. We detect any manipulation, fraud, or abuse of the programme; or

3.4.3. Your conduct otherwise breaches these Terms or any applicable laws or regulations.

3.5. Your tier reward for any month in which you qualify for a particular tier will be payable in the following calendar month.

3.6. Any suspected misuse of the tiering system (including but not limited to commission gaming and multi-account setups) may lead to disqualification from tier benefits and termination of the business relationship.

3.7. Participation in the Tiering Programme is subject to our final approval and compliance with the business terms for Deriv partners, and all applicable laws and regulations. It does not create any expectation or entitlement beyond what is explicitly granted under these Terms.

3.8. "Quarterly Performance Bonus" is a deferred commission-based bonus that may be awarded under the Tiering Programme to Platinum+ partners. The Platinum+ status is applicable to partners who maintain Platinum tier status and remain active—i.e., generate commission earnings—for the entirety of a calendar quarter (January–March, April–June, July–September, or October–December). The Quarterly Performance Bonus is credited at the beginning of the next quarter and calculated as a proportion of the partner's eligible commission earnings.

3.9. To qualify for the Quarterly Performance Bonus, partners must maintain the Platinum tier and remain active (i.e. earn commission) for all 3 months in a calendar quarter. If a partner drops tier or has zero commission in any of the 3 months, the Quarterly Performance Bonus is forfeited.

3.10. We may modify, suspend, or terminate the Tiering Programme (or any part thereof) and the Quarterly Performance Bonus at any time, with or without notice. Any such changes shall take effect upon publication on the Partner Hub or upon written notice to you.

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